

HOUSE No. 2405

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel M. Donahue

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure safe medication administration.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel M. Donahue</i>	<i>16th Worcester</i>	<i>1/15/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>6/2/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>6/2/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>6/2/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>12/18/2025</i>

HOUSE No. 2405

By Representative Donahue of Worcester, a petition (accompanied by bill, House, No. 2405) of Daniel M. Donahue for legislation to ensure safe medication administration. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2149 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure safe medication administration.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 7 of chapter 94C of the General Laws, as appearing in the 2012 Official Edition,
2 is hereby amended by inserting after subsection (h), the following new subsection:-

3 (i) Notwithstanding any general or special law to the contrary, only a dentist, nurse,
4 physician, podiatrist, perfusionist, optometrist or veterinarian licensed as a professional by
5 chapter 112 of the General Laws, or any student enrolled in a course of study for said profession
6 acting under the supervision of said licensed person and in accordance with the General Laws,
7 may administer any controlled substance in schedule II, III, IV, V or VI of Section 3 of chapter
8 94C of the General Laws. This shall not be construed to prohibit the following:

9 (1) self-administration

10 (2) administration of epinephrine pens in an emergency;

11 (3) administration of controlled substances by emergency medical system personnel or

12 (4) administration of controlled substances by any ill, injured or infirm person's domestic
13 partner or family member(s).

14 For the purposes of this section, "self-administration" shall include the ability of any ill,
15 injured or infirm person who has sufficient understanding of their prescribed controlled
16 substance(s); the indications and contraindications for such controlled substance(s); a
17 recollection of the administration schedule for such controlled substance(s) and an ability to
18 communicate this knowledge and the experienced effect of having taken a controlled substance,
19 to supervise an unlicensed person in the direct administration of such controlled substance(s) to
20 them.